WEEK 3 · LECTURE L3 · UNIT I

The Ethics and Culture of Adoption

Consent at work, the surveillance ladder, the digital divide seen from the data side, the DPDP Act 2023, and imported tools.

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DSEH001 · Digital Transformation in Human Resource Systems · M.Com. PGCF 2025 · Exam preparation edition

AFTER THIS LECTURE YOU SHOULD BE ABLE TO

What this lecture prepares you for

- Explain why consent is weak in the employment relationship, and what should replace it.
- Distinguish measurement from monitoring using the surveillance ladder.
- Apply the DPDP Act 2023 principles to employee data.
- Apply Nissenbaum, Foucault and Zuboff, the Article 29 Working Party and Hofstede to digital HR adoption.

COURSE OUTCOMES

CLO 5 (ethics, fairness and strategic alignment) and CLO 3.

THE TURN OF THE LECTURE

The warehouse that answers your question also watches your people

One capability

Individual-level records, joined across systems and kept over time, are the precondition for people analytics and the definition of a surveillance capability.

The only real question

You cannot build one without the other. The question is how the capability is governed.

CONSENT AT WORK IS NOT CONSENT IN A SHOP

Why consent cannot carry the ethical weight

Power asymmetry

A person who can be appraised, promoted or released by the party asking cannot refuse comfortably.

Bundling

Consent buried in an onboarding pack beside genuine conditions of employment is not specific to anything.

Purpose drift

Data given for one purpose becomes a feature in a model built two years later.

Instead of leaning on consent: collect narrowly, state the purpose, limit retention, and allow review.

WHERE MEASUREMENT BECOMES MONITORING

The surveillance ladder

Rung	Example	What changes
Aggregate, historical	Department attrition by quarter	Nobody is identifiable; uncontroversial
Individual, historical	One person's training and appraisal record	Normal HR administration, long accepted
Individual, behavioral	Login times, session length, message volume	The record is now of conduct, not outcomes; presence becomes a proxy for effort
Individual, inferential	A flight-risk score attached to a named employee	A prediction becomes part of the present record and can act on the person

EXAM LENS

Locate any proposed HR analytics use on the ladder, then argue what safeguards that rung requires.

THE DIVIDE, SEEN FROM THE DATA SIDE

Excluded means unrecorded; unrecorded means unserved

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People systems do not reach generate no usage data, complete no digital courses, answer no in-app surveys.

Unrecorded means unserved

Investment follows evidence; a group that generates no data generates no business case, so it stays excluded.

Breaking the loop

Measure coverage as a metric in its own right and gather evidence deliberately from those who are absent.

What the law asks of an employer handling staff data

Principle	What it means at work
Notice and consent	Tell people what is collected and why; consent must be free, specific, informed, unconditional and unambiguous
Employment as a legitimate use	Section 7 allows processing for employment purposes without fresh consent; it is not a license for any use
Purpose limitation	Data collected for payroll should not quietly become data for monitoring or ranking
Security and breach duty	Reasonable safeguards, and a duty to report breaches to the Data Protection Board and to each person affected
Rights of the employee	Access, correction, erasure and grievance redressal

IMPORTED TOOLS CARRY IMPORTED ASSUMPTIONS

Test every tool's assumptions about its user

Language

Many Indian workforces prefer languages other than English; an English-only interface excludes them.

Device

Many frontline workers are smartphone-only, and some have only feature phones; a desktop portal misses them.

Self-service culture

Many tools assume an employee with desk time, an email address and the confidence to act without a manager's approval.

Before adopting any tool, list what it assumes about the user, then check each assumption against your actual workforce.

THEORY IN DEPTH · NISSENBAUM (2004)

Privacy is about appropriate flows, not secrecy

THE CORE IDEA

Contextual integrity: information flows carry norms from the context in which they were shared.

HOW IT WORKS

A flow is a violation when it breaks those norms, even if the data were never secret.

LIMITS AND CRITIQUE

Norms differ and change; deciding which context governs can be contested.

IN PRACTICE

Location data shared for shift scheduling should not flow into performance ratings.

EXAM LENS

Use contextual integrity to explain why "the data was not secret" is not a defense.

THEORY IN DEPTH · FOUCAULT (1975); ZUBOFF (2019)

Being watched changes behavior

THE CORE IDEA

The panopticon: people who might be watched at any time discipline themselves.

HOW IT WORKS

Zuboff: digital systems collect behavioral data and use it to predict and shape behavior.

LIMITS AND CRITIQUE

Monitoring can also protect workers, for example by documenting unsafe workloads.

IN PRACTICE

An employee app that logs every click can become a panopticon unless purpose limits are written in.

EXAM LENS

Balance the critique: show both the disciplinary risk and the protective potential of monitoring.

THEORY IN DEPTH · ARTICLE 29 WORKING PARTY (2017)

Consent at work is rarely free

THE CORE IDEA

European regulators concluded that employees are seldom able to give free consent, given their dependence on the employer.

HOW IT WORKS

Employers should rely on other lawful grounds, with notice, necessity and proportionality.

LIMITS AND CRITIQUE

This is European guidance; India's DPDP Act takes a different route through legitimate uses.

IN PRACTICE

Even under DPDP Section 7, employers should explain purposes plainly and avoid collecting what they do not need.

EXAM LENS

Comparing the European and Indian approaches is a strong way to show critical, contextual analysis.

THEORY IN DEPTH · HOFSTEDE (1980)

Tools carry the culture of the place that built them

THE CORE IDEA

National cultures differ on dimensions such as power distance and individualism.

HOW IT WORKS

India scores high on power distance (77 on Hofstede's index). Self-service tools assume employees will act without a manager's approval.

LIMITS AND CRITIQUE

Country scores hide large differences within a country and across generations.

IN PRACTICE

Self-service may fail not from lack of skill but because staff expect a supervisor to approve first.

EXAM LENS

Use Hofstede to explain adoption failure, then note the ecological fallacy of applying national scores to individuals.

PRACTICE FOR THE END-TERM EXAMINATION

Questions to rehearse

"People analytics and workplace surveillance are one capability." Critically discuss, with reference to the surveillance ladder, contextual integrity and the DPDP Act 2023. **20 marks**

A strong answer: explains why the capability is shared; locates uses on the ladder; applies Nissenbaum and Foucault or Zuboff; uses DPDP principles to propose governance.

Why is consent a weak basis for processing employee data? Compare the European and Indian approaches. **20 marks**

A strong answer: explains power asymmetry, bundling and purpose drift; contrasts Article 29 guidance with DPDP Section 7; recommends alternatives.

Using Hofstede, explain why an imported self-service HR tool may fail in an Indian organization. **10 marks**

A strong answer: applies power distance correctly and notes the limits of national-level scores.

CARRY THESE INTO THE EXAMINATION

Three things to remember

1. **Ask who is missing before you ask what the number says**
   Excluded groups vanish from the evidence base.

2. **A metric is an agreement; a dashboard is a set of incentives**
   Choosing what to display is choosing what to optimize.

3. **Analytics and surveillance are one capability**
   Collect narrowly, state purpose, limit retention, allow review.

SET READINGS · FROM THE LESSON PLAN

Read for this lecture

- Manuti, A., & de Palma, P. D. (2018). *Digital HR*, Chapter 3 (the cognitive technology revolution and HR practices) and Chapter 6 (Conclusion).
- DPDP Act 2023: orientation note on employee data principles.

COMPANION

Each set reading is explained in the matching Unit Reader on rksingh.tech/materials.

THEORY SOURCES · FOR REFERENCE

Sources for this lecture

Works named on the slides of this lecture. They are background sources, not set readings.

Article 29 Data Protection Working Party. (2017). *Opinion 2/2017 on data processing at work* (WP 249). European Commission.

Foucault, M. (1977). *Discipline and punish: The birth of the prison* (A. Sheridan, Trans.). Pantheon Books. (Original work published 1975)

Hofstede, G. (1980). *Culture's consequences: International differences in work-related values*. Sage.

Manuti, A., & de Palma, P. D. (2018). *Digital HR: A critical management approach to the digitilization of organizations*. Palgrave Macmillan.

Nissenbaum, H. (2004). Privacy as contextual integrity. *Washington Law Review, 79*(1), 119–157.

Zuboff, S. (2019). *The age of surveillance capitalism: The fight for a human future at the new frontier of power*. PublicAffairs.